



General Assembly

Seventy-seventh session

51st plenary meeting
Friday, 9 December 2022, 3 p.m.
New York

Official Records

President: Mr. Körösi (Hungary)

In the absence of the President, Mr. Hikmat (Tajikistan), Vice-President, took the Chair.

The meeting was called to order at 3.05 p.m.

Agenda item 72 (continued)

Oceans and the law of the sea

(a) Oceans and the law of the sea

Reports of the Secretary-General (A/77/68 and A/77/331)

Reports on the work of the Ad Hoc Working Group of the Whole on the Regular Process for Global Reporting and Assessment of the State of the Marine Environment, including Socioeconomic Aspects (A/77/327 and A/77/596)

Report on the work of the United Nations Open-ended Informal Consultative Process on Oceans and the Law of the Sea at its twenty-second meeting (A/77/119)

Draft resolution (A/77/L.36)

(b) Sustainable fisheries, including through the 1995 Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks, and related instruments

Report of the Secretary-General (A/77/155)

Draft resolution (A/77/L.33)

Mr. Welles (Federated States of Micronesia): My delegation would first like to thank the delegations

of Singapore and Norway for coordinating the draft resolutions pertaining to oceans and the law of the sea (A/77/L.36) and sustainable fisheries (A/77/L.33), and for bringing the negotiations on them to a successful conclusion.

In 2022 we focused a substantial amount of work on the oceans with mixed results. While the Our Ocean Conference in Palau and the 2022 United Nations Ocean Conference in Lisbon both had successful outcomes, we still have critical work to do when it comes to fully protecting the ocean resources that are considered the common heritage of humankind. In August, we, as an international community, were unable to finalize an international legally binding instrument for conserving and sustainably using the marine biological diversity of areas beyond national jurisdiction. And that same month we had to pause the fifth session of the Intergovernmental Conference on Marine Biodiversity of Areas beyond National Jurisdiction because our allotted time ran out. It is vital that we finalize that work as soon as possible so that we can protect ocean resources effectively. Micronesia looks forward to a resumption and conclusion of the Conference in late February and early March.

This past summer, Micronesia announced that we were joining the Alliance of Countries for a Deep-Sea Mining Moratorium, alongside a number of fellow Pacific small island developing States. It is Micronesia's view that there should be no deep-seabed mining in the international seabed area until the precautionary principle, the ecosystem approach and the principle that the polluter pays have been implemented. In the

This record contains the text of speeches delivered in English and of the translation of speeches delivered in other languages. Corrections should be submitted to the original languages only. They should be incorporated in a copy of the record and sent under the signature of a member of the delegation concerned to the Chief of the Verbatim Reporting Service, room AB-0601 (verbatimrecords@un.org). Corrected records will be reissued electronically on the Official Document System of the United Nations (<http://documents.un.org>).

22-73458 (E)



Accessible document

Please recycle



international seabed area, no such implementation can take place without the finalization of a robust, responsible and comprehensive set of exploitation regulations by the International Seabed Authority. Anything else would be a dereliction of our duty to protect and preserve the marine environment and respect the common heritage of humankind.

Turning to maritime areas within our national jurisdiction, the vast expanse of Micronesia's maritime zones represents both an opportunity and an enormous challenge. We have some of the largest fishing grounds in the Pacific, covering an area of 1.5 million square miles, and one of the most productive tuna fisheries in the western and central Pacific. Our maritime zones are exposed to threats of transnational crimes and illegal activities. We need our partners to support us in building our law-enforcement capacity in the areas of maritime surveillance, money-laundering, terrorist financing, drug trafficking and other transnational crimes. We are grateful to Australia for donating two Guardian-class patrol boats and to Japan for complementing those assets with four smaller patrol boats for nearby coastal waters. We recognize the United States Coast Guard as an enduring partner in protecting our expansive ocean territory. But given our vast exclusive economic zone and extensive continental shelf, reaching beyond 200 nautical miles, we invite additional countries to assist us in acquiring more assets with more advanced maritime surveillance capabilities such as drones and submersibles. Our law enforcement, border management and maritime surveillance teams would benefit from more partnerships in capacity-building and support in order to enable them to continue to enhance their maritime law-enforcement skills.

In July the leaders of the Pacific Islands Forum expressed their concerns about the threat of nuclear contamination to the health and security of the Blue Pacific and its people and prospects. Micronesia remains concerned about the decision to discharge nuclear-contaminated water treated by the Advanced Liquid Processing System into the ocean starting next year. The effects of that decision are both transboundary and intergenerational in nature. We cannot close our eyes and enable the destruction of the ocean resources that support our people's livelihood. In 2022 we also embarked on an important new project to develop a legally binding instrument to prevent plastic pollution, including in the maritime environment. Micronesia engaged actively in the recent meeting in Uruguay and will continue to do so.

The key message for the United Nations as an organization, and for every country in the world that engages with the Pacific, is that Micronesia and the rest of the members of the Pacific Islands Forum urge all countries that engage with the Pacific to support and respect the 2050 Strategy for the Blue Pacific Continent. The Strategy is the road map for our Pacific region's sustainable development and growth, and we can succeed only if we work together with the support of our international partners. In that respect, we look forward to seeing a strong ocean component in the fourth United Nations Conference on Small Island Developing States, to be convened in 2024.

Mr. Sowa (Sierra Leone): The delegation of Sierra Leone is pleased to join the States Members of the United Nations, the United Nations system and of course the States parties to the United Nations Convention on the Law of the Sea (UNCLOS) in marking the fortieth anniversary of UNCLOS's opening for signature in Montego Bay, Jamaica, in 1982.

The year 2022 has been an important one for our oceans and seas, with the holding of the United Nations Ocean Conference in Lisbon, co-hosted by the Governments of Portugal and Kenya; the convening from 15 to 26 August of a fifth session of the Intergovernmental Conference on Marine Biodiversity of Areas beyond National Jurisdiction and the progress made by it on an international legally binding instrument under UNCLOS on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction (BBNJ), as well as the commemoration of the fortieth anniversary of the opening for signature of UNCLOS. My delegation is grateful to the Secretary-General for his reports (A/77/68 and A/77/331) providing an overview of the major developments relating to ocean affairs and the law of the sea at the United Nations and its specialized agencies, funds, programmes and bodies, as well as in other intergovernmental organizations. Sierra Leone would like to highlight a few points on some aspects of the reports, including the important work of the bodies established under UNCLOS.

As we commemorate the anniversary of the opening for signature of UNCLOS, it is heartening to note the broad participation in the Convention, which brings benefits to all States parties, including African coastal States, small island developing States and landlocked States, and which also guides the further development of the law of the sea. Despite those benefits, it is also important to note that our oceans are facing many

challenges that can be addressed through the effective implementation of the Convention and its implementing agreements, on the one hand, and climate action, on the other. The Convention, as the constitution of the Oceans, has to strike a delicate balance between the freedoms, rights and obligations of States, as well as between their various interests.

In acknowledging that our oceans are facing multiple and cumulative threats, my delegation stresses the importance of fully and effectively implementing the Convention if we are to also achieve the aims of the 2030 Agenda for Sustainable Development and its Sustainable Development Goals (SDGs), in particular Goal 14. In that regard, it is critical to highlight the significance of the ongoing negotiations on developing an international legally binding instrument on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction. The delegation of Sierra Leone, which has the honour to coordinate the Group of African States in those negotiations, is pleased with the progress that was made at the fifth session of the Intergovernmental Conference. We welcomed the suspension of the negotiations, which preserved the progress made, and the proposed reconvening of the session from 20 February to 3 March 2023, to be endorsed by the General Assembly in its adoption of draft resolution A/77/L.36.

In the general debate of the high-level week of the General Assembly at its seventy-seventh session (see A/77/PV.7), His Excellency Mr. Julius Maada Bio, President of the Republic of Sierra Leone, in reaffirming Sierra Leone's full commitment to a BBNJ treaty, stressed that it should prioritize conservation measures, the fair and equitable sharing of benefits, meaningful capacity development and the transfer of marine technology. In our view, with the ocean being a global commons, and its areas beyond national jurisdiction governed by the principle of the common heritage of humankind, a BBNJ instrument must deliver for our oceans and seas. It must deliver fairly and equitably for humankind, and especially for future generations, again embodying the critical elements of the principle of the common heritage of humankind.

The institutions established by UNCLOS play important roles in the implementation of the Convention. The Commission on the Limits of the Continental Shelf, the International Seabed Authority (ISA) and the International Tribunal for the Law of the Sea (ITLOS) have continued their activities

contributing to the Convention's implementation. The ISA is mandated under UNCLOS to organize, regulate and control all mineral-related activities in the international seabed area for the benefit of humankind as a whole. In that regard, we want to underscore the importance of the corresponding duty to ensure the effective protection of the marine environment from harmful effects that may arise from deep-seabed-related activities. Accordingly, Sierra Leone has been pleased to continue its engagement in the Authority, noting the significance of the ongoing negotiations on draft exploitation regulations, standards and guidelines, and the draft regional environmental management plan for the area of the northern Mid-Atlantic Ridge, with a focus on polymetallic sulphide deposits. In addition to the important element of protecting the marine environment, the Mid-Atlantic Ridge holds particular significance for Sierra Leone. During the tragic transatlantic slave trade, millions of the Africans who died during slaving voyages in the Middle Passage came to rest on the Atlantic seabed, which therefore has historical and contemporary cultural significance. With exploration for mineral resources in the Atlantic basin already under way, the ISA has a duty to protect objects of an archaeological and historical nature found in the area. Indeed, we believe that the Authority should consider ways to respect and memorialize those who lost their lives and came to rest on the seabed long before any mineral exploitation.

The peaceful settlement of disputes is cardinal in sustaining our international legal order. In that regard, we see as critical the role of the International Tribunal for the Law of the Sea, as an independent judicial body established by UNCLOS with jurisdiction over disputes that may be related to the delimitation of maritime zones, navigation, the conservation and management of the sea's living resources, the protection and preservation of the marine environment and marine scientific research. My delegation commends the Tribunal for its important judicial work and business continuity despite the coronavirus disease pandemic. We especially commend the Tribunal for its capacity-building activities relating to its work, and for the establishment of the Junior Professional Officer programme for young professionals to serve in the legal office of the Tribunal's Registry or in other departments of the Registry, as necessary. We can only urge that the Junior Professional Officer programme also be used to advance equitable geographical representation and gender balance in the Tribunal's registry.

The Government of Sierra Leone attaches great importance to the work of ITLOS, and with regard to its important contribution to the establishment of a rules-based legal order for our oceans and seas, my delegation is pleased to inform the Assembly of the decision of the Government of Sierra Leone to nominate Ambassador Osman Keh Kamara as a candidate for a judgeship at ITLOS for the 2024–2032 term, with elections to be held in June 2023. Ambassador Kamara's competence is well recognized in the field of the law of the sea, and he enjoys the highest possible reputation for fairness and integrity. We are proud of his contribution in the field thus far and commend his candidature to States parties.

My delegation is conscious of the importance of securing the sustainability of the ocean for current and future generations, consistent with the 2030 Agenda for Sustainable Development and its Sustainable Development Goals (SDGs), in particular Goal 14. The implementation of SDG 14 requires capacity-building, partnerships, financing and the development of science and research. We continue to encourage the sustained capacity-building initiatives undertaken by intergovernmental organizations during the reporting period, which we believe can objectively assist developing States in sustainably managing their ocean-based activities and resources, including by implementing the Convention and other related agreements.

Let me conclude by thanking the delegation of Singapore for its leadership in convening the celebration of the fortieth anniversary of UNCLOS's opening for signature and in the consultations on draft resolution A/77/L.36, of which we are a sponsor. My delegation also thanks the Division for Ocean Affairs and the Law of the Sea for its invaluable role in assisting States in the implementation of the Convention and other mandates.

Ms. Schwalger (New Zealand): Aotearoa New Zealand is again very pleased to be a sponsor of the General Assembly draft resolutions on oceans and the law of the sea (A/77/L.36) and sustainable fisheries (A/77/L.33). Our sincere gratitude goes to the coordinators for their dedicated stewardship of the consultations on the draft resolutions. We also thank the Division for Ocean Affairs and the Law of the Sea for its ongoing and always patient support. For 40 years the United Nations Convention on the Law of the Sea (UNCLOS) has been a mainstay of the international rules-based order. New Zealand remains deeply committed to upholding the Convention's position

as the definitive legal framework within which all activities on the oceans and seas must be carried out. We welcome the reaffirmation in the draft resolutions of the Convention's position and their reiteration of its universal and unified character.

This year has popularly been called the Year of the Ocean. New Zealand is one of many Member States that welcomed the reflection in the draft resolutions before us of the progress that has been made this year on ensuring that the rights outlined in UNCLOS are enjoyed and its rules and obligations implemented. In that regard, we continue to have serious concerns about developments in the South China Sea, particularly destabilizing actions that pose risks to the freedom of navigation and overflight guaranteed by UNCLOS. We call on all parties to commit to peaceful solutions and to settling disputes in accordance with UNCLOS, as the constitution of the Oceans.

This year New Zealand was pleased to join the declaration on "Our ocean, our future, our responsibility" made at the second United Nations Ocean Conference. It is an important statement of our collective understanding that greater ambition is required at every level to address the dire state of the oceans. New Zealand joins many delegations in appreciating the undeniably significant progress made this year towards a new agreement under UNCLOS on the conservation and sustainable use of marine biodiversity beyond areas of national jurisdiction. We look forward to the conclusion of an ambitious agreement in February 2023.

The discussions of draft regulations on activities in this area are reaching a critical stage at the International Seabed Authority (ISA). In that context New Zealand is guided by article 145 of the Convention, which imposes a legal obligation on members of the International Seabed Authority to ensure the effective protection of the marine environment from the harmful effects of any activities on the deep seabed beyond national jurisdiction. For that reason, New Zealand is calling for a conditional moratorium on deep-sea mining in that area until regulations can be agreed on that ensure the effective protection of the marine environment. New Zealand remains committed to engaging in the discussions in the ISA to ensure that the effective protection of the marine environment and the precautionary approach, as required by the Convention, are embedded in the regulations.

New Zealand joins other States in welcoming the 2022 draft resolution on sustainable fisheries. When implemented effectively, its commitments have an important impact on the long-term sustainability of our oceans and fisheries. This year the consultations included the fourth General Assembly bottom-fishing review, which provided an opportunity to reflect on the implementation of bottom-fishing commitments relating to the protection of vulnerable marine ecosystems and the health of deep-sea fish stocks. New Zealand was pleased to contribute to discussions on those two critical aspects of overall ocean health. Such reviews enable us to take a step back and assess whether the current commitments are having the positive impact on our oceans that we want. The Secretary-General's report (A/77/155) noted that despite progress, the uneven implementation of bottom-fishing commitments remains an issue. In line with new language in the 2022 draft resolution, New Zealand encourages all States to identify and overcome the barriers to its implementation so that we can improve the protection of our oceans and fisheries and safeguard them for the benefit of future generations.

Finally, sea-level rise and climate change are grave threats to small island developing States and low-lying communities around the world, especially in our Pacific region. As a signatory to the Pacific Islands Forum Leaders' Declaration on Preserving Maritime Zones in the Face of Climate Change-Related Sea-Level Rise, New Zealand is committed to working with the international community to ensure that the maritime rights and entitlements that many States rely on are preserved, consistent with the principles of equity, certainty and stability that underpin the Convention.

Mr. Hasenau (Germany): Let me first join other delegations in thanking the coordinators of the informal consultations on draft resolutions A/77/L.33 and A/77/L.36, Ms. Natalie Morris-Sharma of Singapore and Mr. Andreas Kravik of Norway, for their outstanding coordination. We also thank the Division for Ocean Affairs and the Law of the Sea for its expertise, hard work and constant support to delegations throughout the consultations.

Germany fully aligns itself with the statement delivered on behalf of the European Union (EU) and its member States (see A/77/PV.50).

Germany welcomes the fact that this year's omnibus draft resolution on oceans and the law of the sea (A/77/L.36) reaffirms the universal and unified character

of the United Nations Convention on the Law of the Sea (UNCLOS) as the legal framework within which all activities in the oceans and seas must be carried out, and underscores the importance of maintaining the Convention's integrity.

As host State to the International Tribunal for the Law of the Sea, Germany also welcomes the fact that the omnibus draft resolution again highlights the continued and significant contribution of the Tribunal to the settlement of disputes by peaceful means in accordance with part XV of the Convention. The draft resolution also underlines the Tribunal's important contributions to capacity-building in the field of the law of the sea, among them the Summer Academy of the International Foundation for the Law of the Sea at the Tribunal, which is supported by the German Government. We therefore call on all States to make their maritime claims and conduct their maritime activities in accordance with the relevant provisions of UNCLOS and to resolve their maritime disputes peacefully and without coercion, in accordance with the relevant principles and rules of the Convention and its dispute-settlement mechanisms, including those entailing binding decisions by international courts and tribunals, which must be respected. In that context, we are particularly concerned about the assertion of unlawful and expansive maritime claims in the South China Sea that do not respect the 2016 arbitral award. We emphasize the lawful rights of other States in the region to access their natural resources in their exclusive economic zones without being subject to intimidation and coercion. There is no legal basis other than UNCLOS for claiming any maritime zones anywhere in the world and across all oceans and seas.

We also call on all States to respect freedom of navigation and overflight on the high seas, the right to the exclusive economic zone and all other lawful uses of the oceans and seas, including the right of innocent passage through territorial seas. Those rights and freedoms are vital to international trade and transport links as well as marine scientific research, naval missions and economic prosperity. We are concerned about the recent attempts to restrict the lawful exercise of those rights and freedoms in the South China Sea, the Black Sea and elsewhere, including by blurring the clear distinctions made in UNCLOS between the various maritime zones, for example through the use of unclear legal terminology in domestic legislation regarding the geographic scope of coastguard competences or maritime traffic security laws. We reaffirm our support

for Ukraine's sovereignty and territorial integrity within its internationally recognized borders, extending to its territorial waters, including those around Crimea.

Let me highlight three more points that are at the centre of Germany's attention as far as the law of the sea is concerned. First, it is our concern about the health of the ocean that makes the conclusion of an ambitious international legally binding instrument to conserve and sustainably use marine biological diversity of areas beyond national jurisdiction (BBNJ) a paramount goal for the German Government. As part of the High Ambition Coalition for Nature and People, Germany, reiterating the statement made earlier on behalf of the EU and its member States, regrets that this year's omnibus draft resolution has missed the chance to reflect this year's developments in a more positive way. However, we welcome the fact that the negotiations will continue early in 2023, so that the momentum from the fifth Intergovernmental Conference on Marine Biodiversity of Areas beyond National Jurisdiction and the valuable progress that was achieved will not be lost. Germany remains firmly committed to the BBNJ process.

Secondly, we have been closely following the work of the International Seabed Authority on draft regulations for the exploitation of mineral resources in the area. In particular, Germany is of the view that if we are to ensure the effective protection of the maritime environment, the current knowledge and available science are insufficient to allow any approval of deep-seabed mining until further notice. We are therefore calling for a precautionary pause to prevent any rash decisions at the expense of the marine environment. In our view, the international community should not sleepwalk into an age of deep-sea mining.

Thirdly, Germany will continue its efforts to contribute to the important work of the International Law Commission concerning the issue of sea-level rise. Germany fully recognizes that sea-level rise is an existential question for many small island developing States, which rely economically on their maritime zones. Germany is of the firm opinion that UNCLOS can deliver the stability that such countries need when it comes to the aspects of the issue related to the law of the sea. UNCLOS can and should be interpreted in a contemporary manner in order to preserve maritime zones once they have been legally established under UNCLOS, even if sea levels change. We have elaborated on this in a written contribution to the International Law Commission and invite other States

to consider contributing as well. Together we can prove that UNCLOS is indeed fit for purpose, as was often stressed in relation to the UNCLOS anniversary.

Mr. Ragutthalli (India): Agenda item 72, entitled "Oceans and the law of the sea", has great significance for the international community as a whole. This year, the subject of the oceans occupies a special place, as we are commemorating the fortieth anniversary of the adoption and opening for signature of the United Nations Convention on the Law of the Sea (UNCLOS). We thank the President and the keynote speakers who addressed the plenary yesterday (see A/77/PV.48), especially the Secretary-General, the Secretary-General of the International Seabed Authority and the President of the International Tribunal for the Law of the Sea. We thank the Secretary-General for his reports on oceans and the law of the sea (A/77/68 and A/77/331) and welcome the reports of the co-Chairs of the meeting of the Ad Hoc Working Group of the Whole and its recommendations (A/77/327 and A/77/596) and the co-Chairs of the Open-ended Informal Consultative Process on Oceans and the Law of the Sea (A/77/119).

Our oceans are facing huge challenges, including the deterioration of the marine environment, biodiversity loss, climate change, illegal fishing practices and those relating to maritime safety and security, including acts of piracy and armed robbery at sea. India was an early party to UNCLOS and is an active participant in all multilateral efforts developing a collective management of ocean affairs. India is also party to the Agreement relating to the Implementation of Part XI of the Convention and several related conventions, such as the Fish Stocks Agreement, the International Convention for the Prevention of Pollution from Ships, the International Convention for the Control and Management of Ships' Ballast Water and Sediments, and the London Convention. India has actively participated in and contributed to the discourse on the process for developing an international legally binding instrument for conserving and sustainably using the marine biological diversity of areas beyond national jurisdiction under UNCLOS. India is a strong proponent of blue growth as a part of the long-term strategy for supporting sustainable growth in the marine and maritime sectors.

UNCLOS and the related agreements have been significant achievements for Member States in the codification and progressive development of international law. With 168 parties, the Convention

enjoys near-universal acceptance. With due regard for the sovereignty of all States, it establishes a legal order for the seas and oceans that facilitates international communication and promotes their peaceful use, the equitable and efficient utilization of their resources, the conservation of their living resources and the study, protection and preservation of the marine environment. Its provisions govern the parties' rights, duties and jurisdictions regarding the oceans. We believe that ocean-based activities should be carried out in accordance with internationally agreed principles, particularly those of UNCLOS, in order to realize the full potential of our oceans and seas. India will continue to champion adherence to international law, particularly as reflected in UNCLOS, and the maintenance of freedom of navigation and overflight, in order to meet challenges to the maritime rules-based order. In that regard, I would like to recall that under India's presidency in August 2022, the Security Council reaffirmed that international law, as reflected in UNCLOS, sets out the legal framework applicable to activities in the oceans, including countering illegal activities at sea.

In line with our Security and Growth for All in the Region vision, we are committed to strengthening maritime cooperation in the Indian Ocean region and beyond with a view to ensuring a favourable and positive maritime environment. India also participates in regional frameworks to promote maritime cooperation and exchanges in the region. India is engaged with its partners in the Indian Ocean region in meeting their needs in the area of capacity-building and training. Indian experts are regularly deputed to countries in the Indian Ocean region to assist in enhancing their capacities. Timely and effective humanitarian assistance and disaster relief support are among the core elements of India's assistance profile in the region.

Where our maritime neighbours in Africa are concerned, India has signed defence cooperation memorandums of understanding with Kenya, Mozambique, South Africa and Tanzania. In 2019, India signed three memorandums of understanding with Mozambique on cooperation in hydrography, white-shipping information-sharing and joint surveillance of the Mozambican exclusive economic zone aimed at fostering bilateral cooperation on maritime security. India is also robustly engaging with countries in South-East, East and South Asia and in Oceania. We have comprehensive strategic

partnerships with a number of countries in the region, including Australia, Indonesia and Viet Nam, and an enhanced strategic partnership with Malaysia, a special strategic partnership with the Republic of Korea and Japan, and strategic partnerships with Singapore and the Association of Southeast Asian Nations (ASEAN). Apart from ASEAN, the ASEAN Regional Forum and the East Asia Summit, India has also been actively engaged with other regional forums, such as the Bay of Bengal Initiative for Multi-Sectoral Technical and Economic Cooperation, the Asia Cooperation Dialogue, the Mekong-Ganga Cooperation, the Indian Ocean Rim Association, the Indian Ocean Commission and the Forum for India-Pacific Island Cooperation, all of which contribute to India's realization of its Act East policy.

For a better understanding of oceans and deep seas, particularly the extent and vulnerability of deep-sea biodiversity and ecosystems, an increased flow of scientific data and information, besides the sharing of knowledge with developing countries, is a matter of priority. India believes that greater marine awareness and sharing of scientific knowledge, especially with small island developing States and least developed countries, would help to develop sustainable ocean-based economies, besides laying a foundation for equitable participation by all States. India is acutely aware of the challenges and opportunities that oceans represent — from undertaking sustainable fisheries to preventing and controlling marine litter and plastic pollution, from affordable renewable energy to eco-tourism, from early-warning systems for disaster risk reduction and management to building resilience and adaptation to climate change. We remain committed to addressing the challenges of complex humanitarian emergencies by building disaster-resilient infrastructure. In that context, India has taken the initiative to launch the Coalition for Disaster Resilient Infrastructure, in partnership with several other countries.

In conclusion, the maritime domain is our shared joint heritage, and international sea routes are the lifeline of global trade. Today, however, that shared heritage is facing many challenges, including maritime disputes, ocean pollution, climate change, human-made disasters, overfishing and the misuse of sea routes for piracy and terrorism. In that context, the fortieth anniversary of the adoption of UNCLOS is a solemn occasion for the international community to reaffirm its commitment to the Convention in its letter and spirit.

Mr. Nagano (Japan): Let me begin by thanking Singapore for its dedication and excellent coordination in preparing draft resolution A/77/L.36. Japan would also like to express its appreciation for the constructive engagement of our fellow Member States and the invaluable support of the Division for Ocean Affairs and the Law of the Sea throughout the process.

First of all, Japan would like to take this opportunity to commemorate the fortieth anniversary of the adoption and opening for signature of the United Nations Convention on the Law of the Sea (UNCLOS), which has been the foundation of maritime order as the constitution for the Oceans. We would also like to pay tribute to all who made outstanding contributions to its adoption through long and tough negotiations at the United Nations Conference on the Law of the Sea, in particular Ambassador Tommy Koh, the President of the third United Nations Conference on the Law of the Sea, and Ambassador Arvid Pardo, the father of the law of the sea.

My delegation would like to stress the vital importance of maintaining and promoting the maritime order based on the rule of law, especially for a nation such as Japan, which is surrounded by the ocean. In recent years, maritime issues have become ever more complex and diverse. That is all the more reason to reiterate the importance of the basic principles, including the three principles of the rule of law at sea advocated in 2014 by the late former Prime Minister of Japan, Mr. Shinzo Abe. The first is that States should make and clarify their claims based on international law. The second is that States should not use force or coercion in trying to drive their claims. And the third is that States should seek to settle disputes by peaceful means. In that context, Japan emphasizes that we strongly oppose any unilateral attempts to change the status quo by force or coercion in any region. We also strongly oppose unlawful maritime claims, the militarization of reclaimed features and coercive activities. It is against that background that Japan strongly upholds the universal and unified character of UNCLOS, which provides for freedom of navigation and overflight, freedom on the high seas, the protection and preservation of the marine environment and the peaceful settlement of disputes.

Since the Convention's entry into force, Japan has been constructively and proactively contributing to maintaining and promoting the maritime order under UNCLOS. For example, Japan attaches great importance

to the international organizations established under UNCLOS and is committed to providing both personnel and financial contributions to the International Tribunal for the Law of the Sea (ITLOS), the Commission on the Limits of the Continental Shelf and the International Seabed Authority. Those organizations have taken on the important task of promoting a maritime order based on UNCLOS. Japan will nominate Ambassador Horinouchi Hidehisa, Ambassador of Japan for UNCLOS, as a candidate for the election of judges for ITLOS to be held in June next year. As a chief officer in charge of maritime legislation in Japan, Ambassador Horinouchi was deeply engaged in Japan's ratification of UNCLOS, and he is one of our most highly qualified diplomats in the field of the law of the sea, with profound knowledge of international law. For that reason, we are confident that he will make a significant contribution to the Tribunal's excellent work, and Japan would greatly appreciate States' support for him at the election.

This year's draft resolution, entitled "Oceans and the law of the sea", confirms our commitment to a rules-based maritime order and covers a wide range of oceanic issues. Japan is pleased to be a sponsor of the draft resolution. Sea-level rise related to climate change poses a serious challenge to the international community, especially small island States. Considering the urgency of the issue, Japan will continue to discuss it and work closely with relevant countries, while respecting the integrity of UNCLOS. On the environmental front, negotiations for an international legally binding instrument under UNCLOS to conserve and sustainably use marine biological diversity of areas beyond national jurisdiction have been ongoing and attracting growing attention to the possibility of an early conclusion of the agreement. Japan is firmly determined to continue its active participation in the discussions in order to ensure that the agreement will be universal, effective, functional, inclusive and balanced between the requirements of conservation and sustainable use. Japan will continue cooperating with fellow Member States that share its belief in the importance of the rule of law as a universal value, and will continue its efforts, especially with regard to a free and open Indo-Pacific.

In a previous statement, there were some regrettable references to the discharge into the sea of water treated by the Advanced Liquid Processing System (ALPS). Japan has been engaged in discussions on the subject, based on the scientific evidence, in a transparent manner

in the appropriate forums with relevant expertise, such as the International Atomic Energy Agency (IAEA), and we are willing to continue doing so. Regarding the handling of the ALPS-treated water, Japan has been taking measures that abide strictly by the relevant international law while giving due consideration to international practice, and we will continue to do so. The safety of the handling of the ALPS-treated water is a scientific question. The assessment of its radiological impact on humans and the environment, conducted by the Tokyo Electric Power Company in accordance with internationally recognized methods, demonstrates that the radiological impact of discharging the ALPS-treated water on the public and marine environment is very small compared to the natural radiation exposure in Japan. Since February, IAEA officials and international experts nominated by the IAEA have been visiting Japan and conducting safety and regulatory reviews of the ALPS-treated water. The IAEA has published progress reports for each of the reviews. During the safety review mission in November, the IAEA noted that the IAEA Task Force's findings have been reflected in Japan's revisions to the plan. The IAEA and international experts, as third parties, have been reviewing our efforts, and the reviews will continue. Japan will take measures before the commencement of the discharge, as appropriate, taking into account the observations of the review to be conducted prior to discharge.

There was also a reference to the discharge of contaminated water. However, the water to be discharged has concentrations of radioactive materials far below the regulatory standards, owing to the further dilution of ALPS-treated water that has already been sufficiently purified. In this context, therefore, the use of the description "discharge of contaminated water" is not based on scientific evidence, and we urge that it be corrected. The Government of Japan will never approve any discharge of water into the sea if it does not meet the regulatory standards, which are based on international standards. That means that the Tokyo Electric Power Company will check all the ALPS-treated water and analyse the radionuclides it contains before dilution to ensure that the water to be discharged after dilution meets regulatory standards. The IAEA will also conduct tests to corroborate that monitoring. The Government of Japan has explained the matter to the international community in a highly transparent manner, based on the scientific evidence, and will continue to do so.

In conclusion, let me reiterate Japan's wish that the draft resolution entitled "Oceans and the law of the sea", which is the result of the cooperative efforts of Member States, will be duly adopted by the General Assembly.

Mrs. Debye (Nauru): Nauru associates itself with the statements delivered this morning by the representatives of Antigua and Barbuda, on behalf of the Alliance of Small Island States, and Fiji, on behalf of the Pacific Islands Forum (see A/77/PV.50).

I first want to thank the facilitators, Ms. Natalie Morris-Sharma of Singapore and Mr. Andreas Kravik of Norway, for bringing the negotiations on the omnibus draft resolution on oceans and the law of the sea (A/77/L.36) and the draft resolution on sustainable fisheries (A/77/L.33) to a successful conclusion. We were pleased with the constructive and time-efficient way they conducted our discussion. We also thank the Division for Ocean Affairs and the Law of the Sea for its exemplary work.

Nauru is a big-ocean State. We are highly dependent on marine resources for our sustenance and economic development. That is why we give ocean issues the highest priority within our limited capacity, a capacity that has been sorely tested this year with conflicting meetings, negotiations and voting. The conservation and sustainable use of the ocean are paramount if States like mine are to continue to survive, let alone thrive. The triple planetary crises, including the coronavirus disease pandemic and its consequences, the adverse impacts of climate change and the increases in geopolitical tensions and conflicts, have certainly changed the world and put enormous pressure on the plans we had made for our ocean work. For us to move beyond that and create the bright world that we envisioned in the 2030 Agenda for Sustainable Development, we must end the war that has affected the people and the planet and their prosperity and peace.

Given the current threats to marine biodiversity, at the next Intergovernmental Conference it will also be important to conclude an ambitious international legally binding instrument under the United Nations Convention on the Law of the Sea (UNCLOS) on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, which among other things will enable the establishment of effective, cross-sectoral protected marine areas in order to maintain global ocean health, recognize the special relationship of small islands to the ocean and provide for the fair

and equitable sharing of benefits from marine genetic resources. We will also need high-ambition marine targets that are true to the three goals of the Convention on Biological Diversity built into the post-2020 global biodiversity framework currently being negotiated. Those targets must also consider the uniqueness of island biodiversity and our high levels of endemism.

We welcomed the outcomes of the United Nations Ocean Conference under the able leadership of our hosts, Kenya and Portugal, and the recognition of the special circumstances of small island developing States (SIDS). And we hope that as part of the UNESCO Decade of Ocean Science for Sustainable Development, SIDS are seen as custodians and stewards of the oceans and are consulted early and folded into relevant processes in order to help bring about a broader scientific information and knowledge base for the oceans on which we rely.

There is also important work for the International Seabed Authority (ISA) to advance. Nauru is pleased with the progress that has been made in negotiating the draft exploitation regulations and accompanying standards and guidelines. We welcome in particular an agreed approach to the development of normative environmental threshold values, which are key to protecting the environment during exploitation. The two-year notice period for adopting the regulations expires in July 2023. We remain optimistic that collectively we can make significant progress between now and then. To that end, we call on ISA member States and all stakeholders to finalize the negotiations and adopt a world-class regulatory regime that allows for the responsible collection of sea-floor minerals while ensuring the protection of the environment and human health and safety in realizing the vision of UNCLOS. We also welcome the convening of the first meeting on an international legally binding instrument on plastic pollution, including in the marine environment. We urge all the parties to participate in good faith and with an eye to addressing all the elements of the life cycle of plastics, including remediation, which is of particular importance to small islands like my own.

With regard to fisheries, we would like to congratulate the World Trade Organization on the Agreement on Fisheries Subsidies brokered this year. We believe it is a substantial step in the right direction, but we urge all parties to conclude the remaining pillar of the fisheries-subsidies negotiations on overcapacity and overfishing in order to protect the sustainability of fish

stocks and ensure appropriate special and differential treatment for developing and least developing countries. We also welcome the recent news from the Western and Central Pacific Fisheries Commission that among other things we have been able to adopt a new management procedure for skipjack tuna, agree on new conservation measures for sharks and commit to placing climate change at the forefront of all future undertakings. The discussions on the Fisheries Commission are critical to Nauru's development aspirations and to making progress towards Sustainable Development Goal target 14.7, and we are pleased to see this success of multilateralism.

Mr. Leonidchenko (Russian Federation) (*spoke in Russian*): We are grateful to the Secretary-General for the reports on oceans and the law of the sea (A/77/68, A/77/331 and A/77/155). The Russian delegation is in favour of maintaining the integrity and across the board strengthening of and strict compliance with the provisions of the United Nations Convention on the Law of the Sea (UNCLOS). Our activities in the global oceans need to be conducted strictly in keeping with the norms enshrined in this comprehensive document. We call on those States who have not yet done so to accede to the Convention.

Our delegation recognizes the positive work conducted by the bodies established under the Convention. We would like to note the role of the Commission on the Limits of the Continental Shelf and its valuable input on the implementation of article 76 of the Convention. The Commission's growing workload poses a serious challenge to its effectiveness. Therefore, we support efforts to find measures that could solve this problem. Such efforts must be feasible and should not require us to amend the Convention. We need to draw particular attention to the need to improve the conditions of service of Commission experts. We note with satisfaction the fact that the International Seabed Authority (ISA), on the whole, has managed to maintain the pace of consideration of the items on its agenda, despite the realities of the coronavirus disease pandemic. We note our hope that the key areas of work of the ISA will receive additional impetus as the restrictions are lifted.

There are a growing number of cases pending before the International Tribunal for the Law of the Sea. That growing workload serves to confirm the standing and the relevance of this body, in which States have placed their trust. We see that the problems related to the protection of the marine environment,

including the most vulnerable ecosystems, are coming to the fore. Thus, it is important to ensure that we have a sound scientific basis when considering and coming up with solutions. We need a comprehensive approach with due regard to environmental and socioeconomic issues. We also need to strike a fair balance between the preservation and sustainable use of the marine environment. On that front, we would like to welcome the practical measures taken in the framework of the regular process for the global assessment of the state of the marine environment. The Russian Federation is in favour of in-depth scientific studies of the marine environment, which will help us to broaden our knowledge about the processes under way in the ocean, which affect all of humankind. We would like to underscore the indisputable importance of international cooperation in accomplishing these very ambitious tasks.

We believe that we had a useful discussion this year regarding the implementation of the provisions of General Assembly resolutions related to the impact of bottom fishing on vulnerable marine ecosystems and the long-term sustainability of deep-sea fish stocks. We would like to once again draw attention to the importance of States working together within the framework of the 1995 Straddling Fish Stocks Agreement and the establishment of a network of regional fisheries management organizations under that Agreement. We call on States who have not yet done so to consider acceding to this instrument, which regulates fisheries and has stood the test of time.

We support the drafts of the annual resolutions on sustainable fisheries (A/77/L.33) and oceans and the law of the sea (A/77/L.36), which are under consideration. Most of the provisions in these documents are the fruit of compromise, which was difficult to reach and therefore all the more valuable. Having said that, we cannot but express our concern regarding the constant increase in the volume and thematic scope of these draft resolutions. This means garnering agreement on these draft resolutions is becoming an increasingly lengthy and tense process. Moreover, the number of proposals having little to do with the object of the resolutions is also growing. If they are all included in the final text, as time goes on, we are guaranteed to lose sight of the main goal, which is creating the optimal conditions for the effective and sustainable use of the world's oceans. Furthermore, these resolutions run the risk of becoming simply unreadable and thereby useless to their target

audience, which is the relevant national agencies. Therefore, we need to work together to consider what measures we could implement so as to streamline the content of these draft resolutions and the process of negotiating them. We also regret that yet again that a number of delegations have attempted to introduce into today's constructive discussion politicized country-specific topics that have nothing to do with the items on our agenda today.

Consultations on such lengthy, complex documents such as draft resolutions on sustainable fisheries and the law of the sea are a very arduous task. Therefore, we would like to close our statement by thanking the coordinators of the informal consultations on the omnibus draft resolution on oceans and the law of the sea, Ms. Natalie Morris-Sharma, and on the draft resolution on sustainable fisheries, Mr. Andreas Kravik. Despite the many thorny issues we had to tackle, thanks to our coordinators, we managed to come up with mutually agreeable solutions and decisions. We would also like to thank the Division for Ocean Affairs and the Law of the Sea, and Mr. Vladimir Jares as its head for the valuable assistance throughout this entire process.

Mrs. Ijaz (Pakistan): Allow me at the outset to extend my appreciation to the Secretary-General for his comprehensive reports on the oceans and the law of the sea (A/77/68 and A/77/331), as well as Singapore and Norway, the coordinators of the informal consultations on draft resolutions A/77/L.33 and A/77/L.36.

The ocean covers 70 per cent of the earth's surface. It provides more than half the oxygen needed for life on the planet, the main source of food for over a billion people and employment for almost 40 million individuals. The sustenance and sustainability of the ocean is inextricably linked with the achievement of all 17 Sustainable Development Goals (SDGs) and the 2030 Agenda for Sustainable Development. Unfortunately, we face a global emergency of the oceans, which are under relentless threat from human activities. Sea levels are rising, coastal erosion is worsening, marine pollution is increasing, marine biodiversity is rapidly declining, and the ocean is warmer and more acidic. We need to take urgent action. Improving the governance of the oceans and strengthening legal frameworks are essential to preserving international peace and security, interconnectivity, the blue economy and the timely achievement of the SDGs.

The international legal regime governing all activities in the oceans and seas consists of several global, regional and bilateral legal instruments, as well as customary international law. Yesterday, we commemorated the fortieth anniversary of the United Nations Convention on the Law of the Sea (UNCLOS) (see A/77/PV.48 and A/77/PV.49). Since its adoption, UNCLOS has played a fundamental role in promoting legal order and peace in the oceans, as well as ensuring the harmonious and judicious use of ocean resources for all humankind. Pakistan also attaches great importance to the work of the three bodies established under UNCLOS: the International Tribunal for the Law of the Sea, the Commission on the Limits of the Continental Shelf (CLCS) and the International Seabed Authority (ISA). Since its establishment, the ISA has functioned as the main organ for the management of the Area and its vast resources as the common heritage of humankind.

While my delegation continues to follow the ongoing negotiations on finalizing the deep-seabed mining code in the ISA with interest, it is essential to balance the need for resource extraction with the preservation of the marine environment. In our view, a robust and comprehensive regime for exploitation, including rules on equitable benefit-sharing, should be developed before mining can commence anywhere in the Area. Also, it is important to address the question of the possible hazardous impact on the marine ecosystems. Therefore, negotiations must be continued in good faith in the light of the best available science so that the effects of commercial mining do not lead to any irreversible environmental impact on the oceans.

As the coordinator of the Group of 77 and China for this year, we note with appreciation the progress made during the fourth and fifth sessions of the intergovernmental conference to finalize the draft treaty under UNCLOS on the conservation and sustainable use of marine biological diversity beyond national jurisdiction and look forward to the reconvening of the next session. We would like to stress that the principle of the common heritage of humankind should guide and underpin the new legal regime for the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, including the access and sharing of benefits of marine genetic resources. It provides a solid legal foundation for a fair and equitable regime that would allow all countries to benefit from the potential that marine biodiversity represents, while

giving special attention to the needs of developing countries in terms of capacity-building and the transfer of marine technology.

The work of the CLCS has become more active each year because of the increasing number of submissions by States to determine the limits of their continental shelves beyond 200 nautical miles. In that regard, we would like to reiterate that while examining submissions, the Commission needs to give due regard to its own rules of procedure. Where a land or maritime dispute exists, the Commission, in accordance with rule 5 (a) of annex I of the rules of procedure of the CLCS, shall not consider a submission made by any of the States concerned in the dispute, until prior consent is given by all States that are parties to such a dispute.

The idea of a blue economy recognizes the seas and oceans as main drivers of economic development, with great potential for innovation and growth. Pakistan's interest in the blue economy emanates from having a coastline of more than 1,000 kilometres, an extended continental shelf, an exclusive economic zone of approximately 290,000 square kilometres and 2 major ports — Karachi and the newly built deep seaport at Gwadar. The Indian Ocean offers promising potential for mutual cooperation and collaboration, but geostrategic competition and the pursuit of military dominance by some States could gravely jeopardize that potential. The international community needs to be cognizant of the fact that any military conflict in South Asia could endanger stability in a region that is critical for global trade and global peace and security.

We are also concerned at the politicization of the issues related to the South China Sea. The resolutions of the disputes related to the South China Sea are between the countries concerned. Those outside the region should respect the negotiations and the process through which the parties concerned wish to resolve their disputes.

In conclusion, the Government of Pakistan is fully committed to the 2030 Agenda, including SDG 14 pertaining to the conservation and sustainable use of the ocean. We are open to cooperation and collaboration with other friendly nations for this purpose.

Ms. Sverrisdóttir (Iceland): Allow me to start off today with a quote. It is from a recent book called *On Time and Water*, by Icelandic author Andri Snær Magnason:

“The earliest written records of humans date back five thousand years, events that happened practically yesterday. Humanity first emerged the day before that, in comparison to the ocean’s 50-million-year history.”

This quote is a humbling reminder to humankind. The history of humankind is a short moment in time, when compared to the history of the ocean. Life on Earth started in the ocean, and it continues to support life. Humankind, in contrast, has not supported the ocean sufficiently in return. That must change. Life on Earth depends on it. We stress, in that context, that the ocean is not only important to island States such as Iceland. It is of fundamental importance to all States. The ocean has provided people with what seemed to be, for a long time, an endless supply of food. It provides routes for international transportation and communication; it influences weather and climate and is in many ways the most important part of our planet. A healthy ocean is the key to a healthy planet. Iceland sees the two annual General Assembly draft resolutions we are discussing here today, on sustainable fisheries (A/77/L.33) and on oceans and the law of the sea (A/77/L.36), respectively, as continued steps in that direction.

Yesterday we joined together in celebrating the fortieth anniversary of the United Nations Convention on the Law of the Sea (UNCLOS) (see A/77/PV.48 and A/77/PV.49), the constitution for the oceans and one of the greatest achievements of the United Nations. It is an achievement that too often is taken for granted. It is a fantastic inspiration that, through constructive multilateral engagement, delegations were able to construct this legal framework, within which all activities in the oceans and seas must be carried out. The celebration yesterday was a great way to end the “super year for the ocean”. It started with the United Nations Environment Assembly of the United Nations Environment Programme holding its most successful session since its establishment in Rio in 2012. The resolution on a legally binding agreement to end plastic pollution was a great achievement, and we welcome the first session of the intergovernmental negotiating committee, which took place only last week. Iceland looks forward to an internationally binding treaty becoming a reality.

In the field of fisheries, the adoption of the Agreement on Fisheries Subsidies by the World Trade Organization was an important step towards the goal to eliminate harmful fisheries subsidies, which contribute

to overcapacity, overfishing and illegal, unreported and unregulated fishing. We would like to use this opportunity to encourage States to join us in becoming party to the Agreement. Although negotiations continue on the outstanding issues on fisheries subsidies, we believe that this is an important milestone, and we are grateful to those States that constructively engaged to get this far.

The resumption of in-person meetings this year meant it finally became possible to hold the long-awaited fourth session of the intergovernmental conference on an international legally binding instrument on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction (BBNJ). Although there were still significant restraints to the format due to lingering remnants of the pandemic, the fourth session brought a different tone to these negotiations than had previously been seen. Things were finally moving, albeit slowly. The fifth session of the intergovernmental conference, held last August, built on the momentum gathered at the fourth session and proved to be a long-awaited turning point. Delegations arrived here in New York ready to engage constructively to find much-needed compromises. As a result, more progress was made during these two weeks than in the decade before them. Unfortunately, we ran out of time. But Iceland is certain that if we preserve the progress made and continue on this path of constructive engagement, a new agreement will be the long-awaited result of the resumed fifth session in February and March next year.

A highlight of this year was the United Nations Ocean Conference, held in Lisbon under the able leadership of Kenya and Portugal. Iceland was represented there at the highest level, underscoring the importance Iceland attaches to ocean affairs. Iceland, along with Singapore, had the honour of co-chairing the interactive dialogue on the international law aspects as reflected in UNCLOS, and we thank all those who contributed to the fruitful exchange at the dialogue. It is the hope of Iceland that the Ocean Conference, as well as other major events this year, will prove to have been a gamechanger in terms of the attention, finance and implementation the ocean receives going forward.

Sustainable Development Goal (SDG) 14 unfortunately continues to be significantly underfunded, and yet it is a prerequisite for achieving other goals. The same applies to SDG 5, on gender equality and the empowerment of all women and girls. In Iceland, like elsewhere in the world, gender stereotypes remain a

challenge in our interaction with the ocean. Both the decisions — and the profits, where applicable — are more likely to be made by men. But let me be clear that in order to achieve the SDGs on life under water, as well as on gender equality, we need people of all genders in positions of power.

Climate change remains an existential threat. The ocean has mitigated much of our past inaction by proving to be an ever-important carbon sink. It is, however, unclear for how long it can continue to serve that function without our aid. This important function of the ocean has not been without cost. Ocean acidification, caused by carbon emissions and the burning of fossil fuels, continues to threaten marine biodiversity and is happening faster than the average in the cold Arctic waters around Iceland. Carbon emissions and the burning of fossil fuels are also contributing to sea-level rise, an ever-looming threat that requires our attention. It will be a challenge to deal with, in the context of UNCLOS, but together we will find solutions. Small island developing States and vulnerable low-lying coastal communities should not carry the burden of a situation they have done the least to contribute to.

In the context of climate change, Iceland welcomes the addition of language on the importance of the so-called blue food to the ocean and law of the sea draft resolution, as well as the acknowledgement that a healthy ocean is an important source of nutrition for billions of people. The inclusion of aquatic and blue food in food systems transformation will contribute to lower emissions and a more climate-friendly future of foods. Moreover, blue food systems support livelihoods around the world. The Food and Agriculture Organization of the United Nations estimates that 800 million livelihoods are supported by blue food systems. The importance of this is reflected in Iceland's international development policy. The policy mandates that Icelandic authorities will contribute towards improving the livelihoods and resilience of impoverished societies that rely on fisheries by building capabilities and knowledge for fishing and fish processing.

Icelanders firmly believe that science needs to underpin all aspects of ocean governance and activities. We therefore express our appreciation to the Intergovernmental Oceanographic Commission of the United Nations Educational, Scientific and Cultural Organization for its coordination of the ongoing work on the United Nations Decade of Ocean Science for Sustainable Development.

In conclusion, 2022 will be remembered not only as the “super year for the ocean”, but also as the year we were able to step out of the constraints of the pandemic and finally meet again face to face with colleagues from around the world. I would like to take this opportunity to thank my colleagues for their constructive engagement during negotiations on the two draft resolutions, after two years of virtual technical updates, and of course the two coordinators who ably guided our discussions, Ms. Natalie Morris-Sharma from Singapore on the oceans and the law of the sea draft resolution and Mr. Andreas Kravik from Norway on the sustainable fisheries draft resolution. Our thanks go as well to the President of the BBNJ intergovernmental conference, Ambassador Rena Lee of Singapore, and her facilitators and staff, as well as the Director of the Division for Ocean Affairs and the Law of the Sea, Mr. Vladimir Jares, and his capable staff.

Mr. Chrysostomou (Cyprus): Cyprus fully subscribes to the statement delivered earlier by the European Union and its member States (see A/77/PV.50) and would like to make some additional remarks in its national capacity.

We would first like to thank Singapore and Norway for their hard work facilitating the two draft resolutions before us today (A/77/L.33 and A/77/L.36). As it does every year, Cyprus has co-sponsored both draft resolutions and looks forward to their unanimous adoption.

The annual debate on this agenda item gives all members of the General Assembly an opportunity to reflect on the United Nations Convention on the Law of the Sea (UNCLOS), which is regarded as one of the greatest achievements of the United Nations and of multilateralism. As we commemorate the fortieth anniversary of the adoption of UNCLOS, Cyprus reaffirms its commitment to the rules, objectives, purposes and principles enshrined in the Convention, which sets out the universal legal framework within which all activities in the oceans and seas must be carried out and calls for the Convention's full and effective implementation. UNCLOS is rightly regarded as the constitution of the oceans and is the central pillar of global ocean governance, underpinning and safeguarding international peace, security and sustainable development in the oceans and seas.

Given the opportunity provided by this debate, my delegation wishes to briefly underline the following. First, the sovereignty and the sovereign rights of all States, regardless of size, power and military capability,

including island States and States comprising islands, must be respected. No State should demand exceptional treatment or attempt to create *faits accomplis* based on excessive maritime claims simply because of its might.

Secondly, the provisions of UNCLOS reflect customary international law and are thus binding on all States, irrespective of whether they are parties thereto. The rules and principles of general international law, as well as other relevant international agreements, should be applied in a manner consistent with the Convention.

Thirdly, Cyprus strongly advocates for the peaceful resolution of disputes in accordance with international law, as reflected in the Convention and in the Charter of the United Nations, and based on the principles of good faith and good neighbourliness.

Fourthly, Cyprus strongly believes that emerging challenges relating to the oceans, such as sea-level rise, as one of the urgent climate-change-induced challenges, should be resolved within the framework of the Convention.

In conclusion, we would like to express gratitude to the United Nations Secretariat and to the Division for Ocean Affairs and the Law of the Sea for their work and constant support during the year.

Mr. Panier (Haiti) (*spoke in French*): The Haitian delegation is pleased to take the floor in this debate on the oceans and the law of the sea. Haiti aligns itself with the statement made by the representative of Antigua and Barbuda on behalf of the Alliance of Small Island States (see A/77/PV.50).

I would like to take this opportunity to extend my delegation's congratulations to the coordinators and facilitators of the draft resolutions (A/77/L.33 and A/77/L.36) on which the Assembly is called to take action. These are draft resolutions that are of paramount importance in the context of strengthening ocean governance. My delegation also takes this opportunity to emphasize the importance of the work of the International Seabed Authority, the International Tribunal for the Law of the Sea and the Commission on the Limits of the Continental Shelf, which were created by the Convention.

My delegation takes note of the reports (A/77/327 and A/77/596) on the work of the Ad Hoc Working Group of the Whole of the General Assembly on the Regular Process for Global Reporting and Assessment of the State of the Marine Environment, includ-

ing Socioeconomic Aspects. We also take note of the report contained in document A/77/119 on the work of the United Nations Open-ended Informal Consultative Process on Oceans and the Law of the Sea. We attach paramount importance to the reports of the Secretary-General on oceans and the law of the sea (A/77/68 and A/77/331), prepared pursuant to paragraph 371 of resolution 76/72 and paragraph 212 of resolution 75/89 of the General Assembly. All of the aforementioned documents provide us with current information on maritime affairs and the law of the sea in the context of the implementation of the United Nations Convention on the Law of the Sea, often called the constitution of the oceans. These reports provide us with very important information that allows us to better capture and understand the scale and complexity of ocean- and sea-related issues.

The Republic of Haiti attaches great importance to the United Nations Convention on the Law of the Sea, which lays down the rules not only for free communication and movement between States, but also for the peaceful use of the seas, the equitable and efficient exploitation of resources and the preservation of the marine environment. Haiti is one of the signatory countries of the United Nations Convention on the Law of the Sea. Nevertheless, it must be said that Haiti did not wait for the adoption of this international legal instrument to delimit its maritime borders. In 1894, Haiti set its maritime limit at six nautical miles, and it is this demarcation by Haiti that was maintained by the 1982 United Nations Convention on the Law of the Sea, approximately 100 years later.

It should be noted that the population of the Republic of Haiti is predominantly a coastal one, and that the country's national economy is characterized by a lack of maritime activity. To that end, over the past decade, Haitian authorities have seen fit to further regulate the maritime sector. Haitian parliamentarians adopted unanimously, on 13 July 2017, a law amending the 1982 decree establishing the Maritime and Navigation Service of Haiti, the Maritime Code and the Code of Navigation. With this new normative framework, Haiti wanted to provide the maritime sector with more appropriate legal mechanisms and to regulate the relationship between the public administration and the users of this sector. Haiti also wished to promote the growth of maritime professions and ensure the safety and security of maritime transport in the country. This sector represents a significant area of economic development for Haiti.

The importance of the oceans in the development of global trade no longer needs to be demonstrated. As specified in the report of the Secretary-General, more than 3 billion people depend on the oceans for their livelihoods, and more than 80 per cent of global trade is done by sea. That shows that the contribution of the oceans and their resources to poverty eradication, sustainable economic growth and food security is and remains vital. Indeed, the Secretary-General's report highlights a close relationship between the well-being of the world's population and the health of the oceans. The oceans and their ecosystems cover more than 70 per cent of the surface of the Earth and constitute 95 per cent of the biosphere. That makes the oceans a source of invaluable and vital benefits for the global population. My delegation therefore believes that the protection of the oceans and their resources remains a pressing necessity in the achievement of well-being for our populations. The threats posed by the accumulation of pressures resulting from human activities on our symbiotic relationship with the oceans, in particular rising sea levels, are obvious. It is therefore regrettable that such catastrophic effects disproportionately affect coastal populations and the most vulnerable categories of countries, in particular small island developing States such as Haiti, which is among the countries most exposed to natural disasters, in particular owing to its geographical position.

The United Nations Convention on the Law of the Sea and its implementing agreements establish an overarching legal framework within which all activities relating to the oceans and seas must be carried out. My delegation welcomes the current richness of the international legal framework applicable to maritime activities and the oceans. This multifaceted set of universal, regional and bilateral legal instruments is reinforced by national laws and regulations implementing the Convention. The latter therefore constitutes an important legal framework that governs activities related to the oceans and seas and their resources. We must therefore do everything we can to preserve the integrity of this Convention.

In conclusion, my delegation appeals to the political will of the States parties to the Convention to achieve more genuine international cooperation on the basis of the strengthening of international peace and security, the protection of the maritime environment, the protection of fauna and flora, the prevention of natural disasters, respect for coastal zones and the fight against drug trafficking.

Ms. Seid (Palau): Palau aligns itself with the statements made by Antigua and Barbuda on behalf of the Alliance of Small Island States, and by Fiji on behalf of the Pacific Islands Forum (see A/77/PV.50). We additionally make the following statement in our national capacity.

As a Pacific blue ocean State, Palau's livelihoods and economy are deeply connected to the ocean, but we rely on the ocean for more than just financial and economic gain. We rely on it for sustenance, rejuvenation, recreation and play, and it is intrinsically linked to our identities as island people. Palau has always championed the ocean for the very reason that, as ocean people, we do not know who we would be without it. We are proud to have co-hosted the seventh "Our Ocean" Conference with the United States this year and to have raised over \$16 billion in commitments for oceans. We thank the United States for their camaraderie and partnership and the many Member States who took the long journey to Palau to deliver on this very important work.

Over the past 40 years, the United Nations Convention on the Law of the Sea (UNCLOS) has played a vital role in guaranteeing and safeguarding oceanic rights and entitlements that Palau has heavily relied on. As we reflect on its fortieth year, we applaud the great achievement of UNCLOS in providing governance, facilitating dialogue and being a key instrument in the international community's work towards a more sustainable use of oceans.

In looking forward, we highlight new and existing challenges for the oceans that we share together, including the climate crisis and its impact on lives and livelihoods, particularly for small islands developing States (SIDS): illegal fishing, marine plastic pollution, maritime security and fisheries-related economic development. SIDS contribute the least to the problem of climate change, and yet we, island States, are among the most vulnerable and heavily affected by the effects of sea-level rise, marine resource depletion and ocean acidification. The establishment of exclusive economic zones by UNCLOS was an enormous achievement for international peace and stability, but it is now a paradigm that is being questioned owing to rising sea levels. We reiterate the Pacific Islands Forum landmark Declaration on Preserving Maritime Zones in the Face of Climate Change-related Sea-level Rise, which is firmly grounded in UNCLOS. We ask for support and endorsement from Member States on this issue, which is so keenly linked to our sovereign rights.

Another major issue we urge the international community to act upon is marine plastics pollution. In Palau, our once pristine beaches, one of the great draws of our tourism-based economy, are being littered with plastic pollution, with labels we cannot read and with our marine and wildlife being threatened in the process. Recognized by the United Nations Environment Assembly and following the adoption of its resolution 5/14, the negotiations to reach a legally binding plastics treaty have now begun. We call upon all Member States to spare no effort in resolving the issue of plastics pollution across the world.

We also urge all parties to work towards concluding treaty text for the fifth session of the Intergovernmental Conference on a legally binding instrument for the conservation and sustainable use of marine biodiversity in areas beyond national jurisdiction, as the preservation and fair and equitable sharing of benefits of biodiversity in areas beyond national jurisdiction is long overdue. The high seas constitute the tie that binds us, and without solid governance of them in place, any solutions for the oceans would be disjointed and ineffective.

Palau also feels that it is crucial to focus our efforts on sustaining the resources in the high seas that are still intact, including the international seabed. We are a champion of the moratorium on deep-sea mining. The deep sea makes up 90 per cent of the marine environment, and we feel that we need to tread very carefully, with data and science, before we attempt to extract its resources. Before any nation is allowed to contract for deep-sea mining projects, we strongly encourage the global community to enact serious reform of the International Seabed Authority and the international regulations that comply with UNCLOS's mission to preserve and protect the marine environment.

We also encourage dialogue about how we can build ocean economies of the future. How can we use data and technology to measure our output and move towards sustainability? A useful example of this is Norway's utilization of artificial intelligence in salmon farming. Working with Tidal, a private company, Norway's salmon farmers have been using a combination of new camera technology, as well as machine learning and machine perception, to track and model fish behaviours, environmental conditions and the health of salmon over time. We similarly recognize innovations by companies like Loliware, which has created a seaweed-based substitute for single-use plastics. By farming sustainable seaweed, they have

created new ocean-economy jobs, contributed to carbon sequestration and presented a viable solution to the global plastics problem.

We believe that working with the ocean rather than against it could produce solutions to the challenges we face. As we look forward to the next 40 years of UNCLOS, we call on all to build on it towards a blue revolution. Let us work together as Member States alongside the private sector and civil services for a new ocean paradigm. We owe it to our future generations to come together to build the sustainable use of humankind's common heritage.

Mr. Ramírez Baca (Costa Rica) (*spoke in Spanish*): It was an honour for Costa Rica to participate in yesterday's commemoration of the fortieth anniversary of the United Nations Convention on the Law of the Sea (UNCLOS) (see A/77/PV.48) through the statements made by the representatives of Guatemala, on behalf of the countries of Latin America and the Caribbean, and Viet Nam, on behalf of the Group of Friends of UNCLOS.

This crucial Convention, which we call the constitution for the oceans, regulates 70 per cent of the surface of the world and is perhaps the most ambitious and relevant codification of international law ever achieved by humankind. As is reiterated every year in this Organization in our omnibus resolution on the law of the sea, UNCLOS establishes the legal framework within which we carry out all activities in the ocean and the seas, giving legal security and stability to maritime relations among nations. UNCLOS standardizes procedures for States' claims over maritime areas and offers mechanisms for resolving disputes. The fact that most countries have used UNCLOS to establish their maritime borders shows the strong support it has received from the international community. The Convention was visionary, and its concepts and principles are more relevant than ever. It is one of the best examples of the way that multilateralism can generate international law, which in turn is a source of peace, stability, security and prosperity.

It is impossible to overestimate the importance of the fact that we have a single global ocean, which represents more than two thirds of the planet and is the source of most of the oxygen we breathe. It is also the main regulator of the climate, in addition to being a source of work, energy, transport and food. We are increasingly aware of how crucial the ocean is. For

example, it has absorbed 30 per cent of the carbon dioxide emitted in the last 50 years. And yet despite that, we are facing major challenges that seriously threaten its sustainability. The climate crisis has a direct impact on the ocean, tending to increase temperatures and acidification. Sea levels are rising, and coastal erosion is worsening. Unsustainable fishing, including illegal, unreported and unregulated fishing, has resulted in billions in losses for countries, particularly developing States. We are also facing the accelerated loss of marine biodiversity, which we can address only by establishing networks and protected marine areas, as well as marine reserves. We must fight marine pollution, which is increasing at an alarming pace. In particular, the problem of floating plastics and lost, abandoned and discarded fishing gear is the main cause of what we call shadow fishing, which results in deaths among many species from starvation or asphyxiation. We also face other latent threats such as the possible start of deep-seabed mining in international areas.

Against that backdrop, Costa Rica reiterates the importance of defending and strengthening the governance of the oceans within and beyond national jurisdictions. For that reason, since 2011 our country has worked with enormous commitment and determination to draft an international legally binding instrument for the conservation and sustainable use of marine biodiversity in areas beyond national jurisdiction (BBNJ). In that framework, together with other delegations, we have created a network of interconnected and ecologically balanced maritime areas with just and equitable access to marine genetic resources, the fair distribution of benefits and the adoption of robust and effective procedures for conducting environmental impact assessments that make it possible to safeguard marine ecosystems, as well as capacity-building and marine technological transfers for operationalizing those pillars. We believe that next year's negotiations will be successful and that we will be able to adopt a robust and just agreement. We appeal to those who have high ambitions for a BBNJ agreement to ensure that their political will prevails during the negotiations and in the final text.

Costa Rica will continue to participate constructively in negotiations within the framework of the International Seabed Authority to find solid, fair, transparent and environmentally responsible regulations that fully comply with the principle of the common heritage of humankind and that guarantee the effective protection

of the marine environment, as established in article 145 of UNCLOS. Costa Rica welcomes the establishment of an intergovernmental negotiating committee to develop an international legally binding instrument on plastic pollution, including in the marine environment, based on a comprehensive approach that covers the entire life cycle of plastics. We welcome the decision, and we are committed to participating actively in the committee with a view to seeing its work completed by 2024. That is why in Montevideo we reaffirmed our desire to promote the highest global standards. I would like to take this opportunity to congratulate the Government of Uruguay on its successful holding of that important meeting.

Coming back to the matter of International Seabed Authority regulations, Costa Rica has been appealing since July for a precautionary moratorium on the start of deep-seabed mining activities, as many here are aware. We believe that we do not yet have an appropriate legal framework or sufficient scientific information to expand such activities. We also want to emphasize the importance of enhancing the protection and conservation of the global ocean. In that regard, we would like to highlight the work of the High Ambition Coalition for Nature and People, led by France, the United Kingdom and my country, Costa Rica, and the Global Ocean Alliance, which has collected the commitments of more than 100 States to protecting at least 30 per cent of marine areas. That is an example of practical measures based on science, which are key to restoring marine ecosystems and to achieving Sustainable Development Goal (SDG) 14.

Together with France, we have the honour of organizing the third United Nations Ocean Conference, to be held in France in June 2025. It is a major responsibility, and we have therefore begun consultations with key partners and the hosts of the first and second Ocean Conferences that have been extremely valuable. Building on the achievements of the first and second Conferences, we hope to garner more actions and commitments aimed at addressing the worrisome state of the ocean and realizing SDG 14 by 2030. The Conference, and the high-level thematic event preceding it in Costa Rica in June 2024, will be an opportunity to convene interested parties working to protect the ocean and its biodiversity, including Heads of State and Government, elected representatives from the world's coastal areas, professionals and maritime businesspeople, scientists, non-governmental

organizations, artisanal fisheries and a broad gamut of civil-society representatives. We hope to mobilize all stakeholders to provide funding and innovative solutions to guarantee the sustainable governance of the oceans and implementation of the BBNJ.

Costa Rica is grateful for the reports presented under this agenda item. We would like to thank and commend the facilitators, Singapore and Norway, for their efforts and leadership in negotiating draft resolutions A/77/L.33 and A/77/L.36 and achieving consensus on them. Costa Rica is proud to be a sponsor of those important draft resolutions and we thank the Division for Ocean Affairs and the Law of the Sea for its invaluable support.

The Acting President: I now give the floor to the President of the International Tribunal for the Law of the Sea.

Mr. Hoffmann (International Tribunal for the Law of the Sea): It is an honour for me to address the General Assembly this year on behalf of the International Tribunal for the Law of the Sea (ITLOS) during the Assembly's consideration of agenda item 72, "Oceans and the law of the sea".

I would like to begin by informing the Assembly about the judicial work of the Tribunal. Since my last address to the General Assembly in December 2021 (see A/76/PV.48), there have been noteworthy developments with regard to three cases, the first of which is the *Dispute concerning delimitation of the maritime boundary between Mauritius and Maldives in the Indian Ocean*. I should briefly remind the Assembly that in June 2019, Mauritius had initially instituted annex VII arbitral proceedings against the Maldives. Later, by a special agreement concluded on 24 September 2019, Mauritius and the Maldives agreed to transfer their dispute to a Special Chamber of the Tribunal to be formed pursuant to article 15, paragraph 2, of the Tribunal's Statute. Accordingly, the Special Chamber was constituted by an order of the Tribunal dated 27 September 2019. I should further recall that on 28 January 2021, the Special Chamber delivered a judgment on the preliminary objections raised by the Maldives in December 2019. The Special Chamber concluded that it had jurisdiction to adjudicate on the dispute concerning the delimitation of the maritime boundary between the parties in the Indian Ocean and that the claim submitted by Mauritius in this regard was admissible.

Following the Special Chamber's judgment on preliminary objections, the merits phase of the case was resumed. Written proceedings were conducted over the course of two rounds, with all pleadings filed within the prescribed time limits. Pursuant to the order of the President of the Special Chamber dated 18 August, the oral proceedings were opened on 17 October, that is, about two months after the Maldives filed its rejoinder. The hearing was held from 17 to 24 October and consisted of two rounds of oral arguments. The Special Chamber then withdrew to deliberate on the case. The date of the reading of the judgment will be announced in due course.

That brings me to the developments concerning a second case, the *M/T "San Padre Pio" (No. 2) Case (Switzerland/Nigeria)*. The Assembly may recall that on 17 December 2019, Switzerland and Nigeria transmitted a special agreement and notification to the Tribunal to submit to it their dispute concerning the arrest and detention of the Swiss-flagged vessel *M/T San Padre Pio*, its crew and cargo. In this case, oral proceedings were originally scheduled to be held in September 2021. However, further to a request from Switzerland, the hearing was postponed by an order of the President of 10 August 2021, until a later date to be fixed after consultations with the parties. In its request, Switzerland had referred to "the ongoing implementation of a memorandum of understanding concluded by Switzerland and Nigeria on 20 May 2021 regarding the issue of the *M/T San Padre Pio*".

By a letter dated 10 December 2021, the agent of Switzerland then informed the Tribunal that as of that day, the vessel had exited Nigeria's exclusive economic zone and entered the exclusive economic zone of Benin. In the same letter, the agent requested the Tribunal to record the discontinuance of the *M/T "San Padre Pio" (No. 2)* case, in accordance with article 105 of the ITLOS rules, and to remove the case from the Tribunal's list. In a letter dated 24 December 2021, the agent of Nigeria confirmed that "Nigeria has no objection whatsoever to the discontinuance of the case by the Tribunal as already notified by Switzerland". In accordance with article 105 of the rules of the Tribunal, the President of the Tribunal, by an order dated 29 December 2021, therefore placed on record the discontinuance, by agreement of the parties, of the proceedings and ordered the case removed from the list. As international dispute settlements are based on the principle of consent, the will of the parties plays a

fundamental role in the conduct of proceedings before an international court or tribunal. The discontinuance of proceedings before a final judgment is delivered may also rely on consent, when the parties to the dispute communicate jointly or separately their agreement to terminate the proceedings. In such cases, recourse to judicial settlement may have assisted the parties in achieving an out-of-court settlement.

I will conclude this overview of the Tribunal's judicial work with a development that occurred only a few weeks ago. On 10 November, the Tribunal received an application under article 292 of the United Nations Convention on the Law of the Sea for the prompt release of the *M/T Heroic Idun*, a crude carrier flying the flag of the Marshall Islands, and its 26 crew members. According to the application, on 12 August, while the *M/T Heroic Idun* was in the exclusive economic zone of Sao Tome and Principe, it was approached by a vessel of Equatorial Guinea's navy and asked to follow its route into Malabo. The *M/T Heroic Idun* was then directed to an anchorage on Bioko Island, Equatorial Guinea, where it was kept in detention. The application further stated that the ship's master and 14 crew members were asked to disembark and taken to a Government-owned facility, while the remaining 11 crew members were detained on the vessel. I should mention in that regard that pursuant to its rules, the Tribunal treats prompt release cases as urgent proceedings. In accordance with those rules, a hearing must be fixed at the earliest possible date within 15 days of receipt of an application. Therefore, by an order dated 11 November, in my capacity as President of the Tribunal, I fixed 24 November as the date for the opening of the hearing. However, by a letter dated 14 November, the Agent of the Marshall Islands informed the Tribunal that "Equatorial Guinea caused the vessel and her crew to be transferred into the jurisdiction, control and custody of Nigeria on 11 November 2022". The Agent further stated that those developments "rendered moot the Marshall Islands prompt release application" and requested the Tribunal to "take this correspondence as a formal notification of discontinuance of the proceedings in question under article 106 (1) of the rules of the Tribunal". I may note that article 106, paragraph 1, of the rules allows for discontinuance of a case at the request of the applicant when the respondent has not yet taken any steps in the proceedings. At the time the Agent of the Marshall Islands filed the request for discontinuance, the Government of Equatorial Guinea had indeed not taken any steps. Therefore, in accordance with article 106,

paragraph 1, by order of the President of the Tribunal of 15 November, the discontinuance of the proceedings was placed on record and the removal of the case from the Tribunal's list of cases was ordered.

In that context, I wish to recall that, in my previous address to the General Assembly, I drew attention to the unique procedure under article 292 of the Convention, which authorizes a flag State or an entity acting on its behalf to file before the Tribunal an application for release when it is alleged that the detaining State has not complied with the provisions of the Convention for the prompt release of a vessel and its crew upon the posting of a reasonable bond or other financial guarantee. In accordance with that procedure, the Tribunal may deal only with the question of release, without prejudice to the consideration of the merits of the case before the appropriate domestic forum.

Urgency is another striking feature of prompt release proceedings, requiring that a judgment be rendered in an efficient manner, within a time frame of about 30 days. From the inception of the Tribunal until 2007, the Tribunal entertained a total of nine applications for prompt release. However, since 2007 no further prompt release applications had been made to the Tribunal until recently, when the application for the prompt release of the *M/T Heroic Idun* was filed. Although that case was discontinued, it is of interest to note that, after 15 years in which no applications were made, a flag State had recourse to prompt release proceedings in an urgent situation with a view to seeking the prompt release of its vessel and crew.

I would now like to turn my focus to the Tribunal's activities in the field of capacity-building. I can inform the Assembly, much to my satisfaction, that following a hiatus due to the coronavirus disease pandemic, the Tribunal was able to resume its established practice of holding regional workshops on the settlement of disputes related to the law of the sea. I wish to thank the Government of Cyprus and the Korea Maritime Institute for their financial support for this year's workshop, which was held in Malta, as well as our co-organizers, the International Maritime Law Institute of the International Maritime Organization. In addition, the Summer Academy, which is organized by the International Foundation for the Law of the Sea, was also held once again on the premises of the Tribunal in 2022.

The Tribunal pursued its programmes in support of current and future generations and hosted several interns in our internship programme in 2022. I would like to recall that a trust fund set up by the Tribunal is available to support interns from developing countries, to which several grants have been contributed over the years, most notably by the Korea Maritime Institute and the Ministry of Foreign Affairs of the People's Republic of China. I would like to express my sincere gratitude for that support. The Tribunal also continued its capacity-building and training programme in international dispute settlement in the law of the sea, which has been organized annually since 2007 with the financial support of the Nippon Foundation of Japan. I would like to take this opportunity to express my sincere gratitude to the Foundation for its enduring commitment to the programme.

I would also like to update the Assembly on a noteworthy addition to the Tribunal's capacity-building activities. In 2020, the Tribunal received a generous grant from the Republic of Korea to fund a workshop intended for legal advisers, in particular from developing countries, to familiarize them with the Convention's dispute-settlement mechanisms. While the workshop unfortunately could not be held in 2020 or 2021 due to the prevailing restrictions, I am pleased to report that the inaugural ITLOS Workshop for Legal Advisers was held in September and was attended by participants from 18 South-East Asian and Pacific small island developing States.

In conclusion, allow me to express my appreciation to the Secretary-General, the Legal Counsel and the Director of the Division for Ocean Affairs and the Law of the Sea for the unfailing cooperation and support they have always offered the Tribunal.

The Acting President: I now give the floor to the Secretary-General of the International Seabed Authority.

Mr. Lodge (International Seabed Authority): I wish to thank the General Assembly for the many positive references to the work of the International Seabed Authority contained in draft resolution A/77/L.36. The overwhelming support of Member States for the work of the Authority is very much appreciated.

As always, I also wish to acknowledge the extraordinary support and cooperation we have received from the Office of the Legal Counsel and the Division for Ocean Affairs and the Law of the Sea

(DOALOS). We continue to work closely together in a spirit of cooperation to respond to and support the needs of Member States, including in the context of United Nations-Oceans. This year we were particularly pleased to concretize that cooperation by jointly hosting with DOALOS a regional workshop in Kingston in support of the third cycle of the regular process. We continue to be willing to extend our support to ongoing processes, including during the concluding stages of the intergovernmental negotiating conference.

Section VI of the draft resolution highlights the progress made by the Council of the Authority in advancing its discussions on the development of draft regulations for the exploitation of mineral resources in the Area. I wish to congratulate the Council and all members of the Authority on the excellent progress made during 2022 and the adoption of a road map for the continuation of this work into 2023. The completion of the regulatory regime is a fundamental part of the evolutionary approach to the establishment and work of the Authority encapsulated in the 1994 Agreement relating to the Implementation of Part XI of the United Nations Convention on the Law of the Sea. That is work that the Authority must do in order to fulfil its mandate to protect the marine environment, as well as to protect the rights of all States parties to conduct activities in the Area in accordance with the rules, regulations and procedures of the Authority. It is in the interests of all members of the Authority to ensure that there is clarity in the legal framework and to remove regulatory uncertainty and risk. Completing the regulations in a timely manner is the best way to ensure that any exploitation activities in the Area are conducted in a way that ensures the effective protection of the marine environment in accordance with the Convention.

Over the past five years of my mandate, I have worked intensively with members of the Authority to put in place a strategic framework in order to deliver more effectively on the Authority's mandate. The framework includes the strategic plan, adopted in 2018, a high-level action plan, and an action plan in support of the United Nations Decade of Ocean Science for Sustainable Development. I would therefore like to express my satisfaction that at its twenty-seventh session, in August, the Assembly of the Authority completed the strategic framework by adopting a decision relating to the implementation of a programmatic approach to capacity development, as well as approving the establishment of the International

Seabed Authority Partnership Fund. Those decisions will enable the Authority to redouble its efforts to provide tangible and meaningful capacity-building and capacity-development opportunities to address the needs identified by developing States that are members of the Authority. I especially look forward to working with all members to develop the new Partnership Fund as a platform for increased international collaboration in support of the Authority's mandate.

With the approval of the Council, I was also pleased to sign a long-awaited memorandum of understanding with the African Union, which I believe will further elevate our constructive partnership with African States members of the Authority. The strong interest of African States in participating in the regime for the Area and making use of the opportunities given to them by the Convention was underlined at the Authority's international workshop held in Abuja in October. More than 300 participants, from eight African States, attended the workshop, which took place as part of the Africa Deep Seabed Resources Project, supported by the Norwegian development agency NORAD. We were also pleased to welcome to the secretariat the final group of African experts supported by this project. I want to express my sincere appreciation to NORAD and the Government of Norway for their consistent support to the work of the Authority and capacity development.

Another key priority for the Authority has been the implementation of the action plan in support of the United Nations Decade of Ocean Science. Its full implementation is essential to the effective application of the precautionary approach, which already governs all aspects of the work of the Authority as it serves to advance the scientific basis for the continuous improved assessment of the impacts and risks related to deep-seabed exploration and future exploitation activities. A major step forward was taken at the United Nations Ocean Conference in Lisbon with the launch of the Sustainable Seabed Knowledge Initiative, with the financial support of the European Commission. An inception workshop for the Initiative, supported and hosted by the Government of Korea, took place in Korea last week. I welcome the strong support of the European Commission and the Government of Korea for deep-sea science, and I encourage others to join us in this ambitious, multi-year programme of scientific discovery for the benefit of all.

As part of the global celebration of the fortieth anniversary of the Convention, the Authority was delighted to organize the first ever Women in the Law of

the Sea Conference in September, here in New York. The Conference celebrated the contribution of women to the development of the law of the sea and their participation in the institutions created by the Convention and related regional and subregional organizations, and discussed the pathways for enhancing the potential for women to contribute to the law of the sea in future. I would like to thank all who participated and to particularly express my appreciation to the Permanent Mission of Singapore for its support for the Conference.

Finally, as we mark this fortieth anniversary year, it would be remiss of me not to mention the constant support to the Authority and its secretariat given by our host country, Jamaica. Yesterday we heard a very moving statement from the Permanent Representative of Jamaica (see A/77/PV.48), and I fully concur with his remarks. The Authority remains the only global organization to have its headquarters in a small island developing State. I am sure I speak on behalf of all the members of the Authority when I say that we sincerely appreciate everything that Jamaica has done for us over the years and everything that the spirit of Jamaica contributes to the Authority's identity. As we move into 2023 with an accelerated programme of meetings for the Council and a determination to complete the mining code, I look forward to welcoming as many of those here as possible to Jamaica.

The Acting President: We have heard the last speaker in the debate on this item.

Before proceeding further, I should like to remind members that action on draft resolution A/77/L.36 is postponed to a later date to allow time for a review of its programme budget implications by the Fifth Committee. The Assembly will take action on the draft resolution as soon as the report of the Fifth Committee on its programme budget implications is available.

The Assembly will now take a decision on draft resolution A/77/L.33, entitled "Sustainable fisheries, including through the 1995 Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks, and related instruments".

I now give the floor to the representative of the Secretariat.

Mr. Perera (Department for General Assembly and Conference Management): I should like to announce that since the submission of the draft resolution, and in addition to the delegations listed in the document, the following countries have also become sponsors of draft resolution A/77/L.33: Brazil, Cuba, Fiji, Georgia, the Maldives, Marshall Islands, Nauru, South Africa, Thailand, Ukraine, the United Republic of Tanzania, the United States of America and Vanuatu.

The Acting President: May I take it that the Assembly decides to adopt draft resolution A/77/L.33?

Draft resolution A/77/L.33 was adopted (resolution 77/118).

The Acting President: Before giving the floor for explanation of position after adoption, I would like to remind delegations that explanations of position are limited to 10 minutes and should be made by delegations from their seats.

Ms. Bilman (Türkiye): Türkiye has joined the consensus on resolution 77/118, regarding sustainable fisheries, since we are fully committed to the conservation, management and sustainable use of marine living resources and attach great importance to regional cooperation to that end. However, Türkiye dissociates itself from references made in the resolution to the United Nations Convention on the Law of the Sea and the Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks, to which it is not party. Those references should therefore not be interpreted as a change in Türkiye's legal position with regard to those instruments.

Mr. Mainero (Argentina) (*spoke in Spanish*): Argentina joins the consensus on resolution 77/118, on sustainable fisheries. Nevertheless, we want to point out once again that none of the recommendations or paragraphs in the resolution can be interpreted as signifying that the provisions contained in the 1995 Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks and related instruments can be considered obligatory by States that have yet to explicitly express their consent to being bound under the Agreement. The resolution that we

have just adopted contains paragraphs related to the implementation of the recommendations of the Review Conference on the Agreement. Argentina reiterates that those recommendations cannot be considered to be enforceable, even as recommendations, for States that are not parties to the Agreement.

At the same time, Argentina reaffirms that existing international law does not empower regional fisheries-management organizations or their member States to adopt measures of any kind against vessels whose flag States are not members of those organizations or party to those arrangements or have not explicitly consented to such measures being applicable to vessels flying their flags. Nothing in the General Assembly's resolutions, including resolution 77/118, just adopted, should be interpreted as being contrary to that conclusion.

I would like to recall once again that the application of conservation measures and the conduct of scientific research or any other activity recommended in General Assembly resolutions, particularly resolution 61/105 and its successors, fall necessarily under the legal framework of the international law of the sea in force, as reflected in the United Nations Convention on the Law of the Sea, including its article 77, which should be strictly observed. Consequently, compliance with these resolutions cannot be construed as justification for ignoring or denying the rights established in the Convention, and nothing in the resolutions of the General Assembly provides for the curtailment of the sovereign rights of coastal States or of their exercise of jurisdiction with respect to their continental shelf in accordance with international law. Paragraph 207 of the resolution contains a highly relevant reminder in that regard, as reflected in resolution 64/72 and subsequent resolutions. Accordingly, and as in previous resolutions, paragraph 208 recognizes coastal States' adoption of measures to address deep-sea fishing in vulnerable marine ecosystems in the entire area of their continental shelf, as well as their efforts to ensure compliance with those measures.

Mr. Guerra Sansonetti (Bolivarian Republic of Venezuela) (*spoke in Spanish*): We thank Mr. Andreas Kravik of Norway for facilitating the consultations regarding resolution 77/118.

The Bolivarian Republic of Venezuela is not a State party to the United Nations Convention on the Law of the Sea (UNCLOS) or to the 1995 Agreement for the Implementation of the Provisions of the United Nations

Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks. As such, and since the reasons that have prevented the Bolivarian Republic of Venezuela from becoming party to those instruments remain, their norms are not applicable to Venezuela as conventional law or as international custom, except those that the Venezuelan State may have expressly recognized or will recognize in the future by incorporating them into its national legislation.

To cite its most important aspects, our decree No. 1408 of November 2014, which reformed our fisheries and aquaculture law, establishes the principles and standards for our application of responsible fishing and aquaculture practices in the management and sustainable use of hydrobiological resources, respecting the ecosystem, biological diversity and genetic heritage of the nation. Among other provisions, it furthers the promotion of the integral development of the fishing sector, aquaculture and its related activities, the protection of settlements and artisanal fishing communities, with a view to improving the quality of life of small-scale fishers and, through its prohibition of bottom fishing, safeguarding biodiversity and ecological processes that ensure a healthy and balanced aquatic environment for future generations.

Venezuela also reiterates its commitment in this area through its application of the Code of Conduct for Responsible Fisheries of the Food and Agriculture Organization of the United Nations and chapter 17 of Agenda 21, approved by the Conference of the United Nations Convention on Environment and Development in 1992. We also participate in mechanisms such as the Western Central Atlantic Fishery Commission and the capacity-building programme of the International Hydrographic Organization, which assists countries in the wider use of the seas and oceans in a sustainable manner by providing adequate hydrographic services and nautical mapping.

In the spirit of consensus, my delegation has joined others in supporting the adoption of resolution 77/118. However, Venezuela would like to reiterate its express reservations regarding its content, as it is not a State party to the United Nations Convention on the Law of the Sea or to the Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks.

The Acting President: We have heard the last speaker in explanation of position after adoption.

The representative of China has asked to speak in exercise of the right of reply. I would like to remind members that statements in right of reply are limited to 10 minutes for the first intervention and five minutes for the second, and should be made by delegations from their seats.

Mr. Liu Yang (China) (*spoke in Chinese*): In today's general debate on agenda item 72, representatives of some countries made erroneous remarks on the South China Sea issue. China categorically rejects those remarks. The United Nations is not an appropriate venue for discussing the South China Sea issue, but China nonetheless feels compelled to respond sternly to the rhetoric of various relevant countries. China's position on the issue is consistent and clear. Our territorial sovereignty, maritime interests and interests in the South China Sea were formed over a long period of history and have been upheld by successive Chinese Governments. They are in line with international law, including the Charter of the United Nations and the United Nations Convention on the Law of the Sea (UNCLOS).

China has always been committed to resolving territorial and jurisdictional disputes through negotiations with the countries directly concerned and to working with the countries of the Association of Southeast Asian Nations (ASEAN) to jointly maintain peace and stability in the South China Sea. We have spared no effort to maintain friendly relations with our neighbours. At present, thanks to the joint efforts of China and the countries of ASEAN, the situation in the South China Sea remains generally stable. Peace and stability in the South China Sea are part of the common aspirations and expectations of the countries in the region. However, driven by hidden agendas, some external forces are trying by any means possible to deliberately stir up trouble on the South China Sea issue. They are trying to sow discord among countries in the region and intensify military deployment and military activities in the South China Sea. They represent a serious threat to regional peace and stability to which China is firmly opposed.

The arguments that certain countries have made regarding the South China Sea issue are obviously fallacious and deliberately misleading. China would like to further state its position in order to set the

record straight. First, with regard to the so-called South China Sea arbitration case, that case was unilaterally initiated by the Philippines, and the arbitral tribunal violated the principle of State consent and acted beyond its authority. It made obvious mistakes in ascertaining facts and applying the law and made a wrongful judgment. The award that the arbitral tribunal made is null and void and has no binding force. China has not accepted or participated in the arbitration and does not accept or recognize the so-called award. China's territorial sovereignty and maritime rights and interests in the South China Sea will never be affected by that arbitration award in any circumstances. China opposes and does not accept any claim or actions based on the arbitration award. Some countries have tried at every turn to hype up the so-called "South China Sea arbitration case", which is essentially aimed at serving their own political purposes. The only realistic and effective way to deal with the South China Sea issue is through negotiation and consultation.

Secondly, with regard the claim of rights in the South China Sea, as a State party to UNCLOS, China enjoys all the rights that the Convention confers on it. At the same time, it must be emphasized that UNCLOS does not exhaust all the rules of the law of the sea, as is stated in the preamble to the Convention, which says that "matters not regulated by this Convention continue to be governed by the rules and principles of general international law". As for the issue of land territory in the South China Sea, that matter does not belong to the scope of UNCLOS. China's territorial sovereignty and maritime rights and interests in the South China Sea are in conformity with international law and practice. Certain countries unjustifiably exaggerate the role of the Convention in a wrongful interpretation and application of international law.

Thirdly, on freedom of navigation in the South China Sea, the South China Sea is currently one of the busiest and freest sea passages in the world. More than 100,000 merchant ships sail through the area every year. We have never received any reports of violations of freedom of navigation. It can be said that freedom of navigation and overflight enjoyed by all countries in accordance with international law has therefore never been a problem in the South China Sea. What is really

worthy of our vigilance is that in the name of freedom of navigation, some countries have sent military warships and planes to demonstrate their strength in the South China Sea and threaten the sovereignty and security of coastal countries in the region. All parties should firmly oppose this. It should be emphasized that freedom of navigation does not permit wrongheaded behaviour. While exercising that freedom, all countries must fully respect the sovereignty and the security interests of the coastal countries in the region and respect the rules and regulations developed by coastal countries in accordance with UNCLOS and other international laws.

At present, China and the countries of ASEAN are fully and effectively implementing the Declaration on the Conduct of Parties in the South China Sea and are actively advancing consultations on a code of conduct in the South China Sea. We continue to work to intensify our maritime dialogue and cooperation in a collaborative effort to make the South China Sea an area of peace, friendship and cooperation. We hope that all parties, especially countries outside the region, will view the South China Sea issue objectively and rationally and play a constructive role. They should refrain from creating disturbances in the South China Sea, engaging in military provocations or sowing discord between China and the countries of ASEAN. We hope that they will effectively respect and support the efforts of the countries of the region to maintain peace and stability in the South China Sea.

The Acting President: May I take it that it is the wish of the General Assembly to conclude its consideration of sub-item (b) of agenda item 72?

It was so decided.

The Acting President: The General Assembly has thus concluded this stage of its consideration of agenda item 72.

Members are reminded that immediately following this meeting, we will resume the 49th plenary meeting to continue the commemoration of the fortieth anniversary of the adoption and opening for signature of the United Nations Convention on the Law of Sea.

The meeting rose at 5.35 p.m.